

		However, <i>Code of Civ. Proc. § 2033.280(c)</i> indicates that sanctions are mandatory on “the party or attorney, or both, whose failure to serve a timely response to request for admission necessitated this motion.” Accordingly, sanctions are ordered against Defendant in the reduced amount of \$1, 290, due and payable through Plaintiffs’ attorney of record within 30 days of this order. <i>Plaintiffs’ counsel to give notice.</i>
4.	Yakoub v. Aguilar 24-1393709	Before the Court at present is the “Motion to Quash Defendants’ Subpoena for Plaintiff’s Out of State Records Pursuant to <i>C.C.P. §§ 1987.1 et seq.</i>, and <i>1985.3(g)</i>” filed by Plaintiff Mohab Yakoub (“Plaintiff”) on 11/8/24. As reflected in the Opposition, the Motion on the merits is now MOOT, as the subpoena at issue was promptly withdrawn after this Motion was filed. (ROA 51, Kandarian-Stein Decl. at ¶ 11, and Ex. C.) What remains at issue is the respective requests for sanctions. Both sides’ sanctions requests are DENIED. Plaintiff is correct that the subpoena at issue was improperly directed to another state, without complying with <i>C.C.P. § 2026.010</i>. The defense is thus not entitled to sanctions here, despite the conduct of Plaintiff’s counsel in addressing the issue. However, the defense has otherwise shown good cause for seeking at least a substantial portion of the records at issue. (ROA 51, Kandarian-Stein Decl. at ¶¶ 3-5 and Exs. A, B.) Instead of cooperating with the defense to provide those records reasonably requested, Plaintiff just asserted extensive objections and demanded withdrawal of the subpoena and payment of sanctions. (ROA 42, Shirazi Decl., ¶¶ 3-11, and Exs., 1-5.) As Plaintiff failed to make a reasonable effort to resolve the dispute and to cooperate in allowing reasonable discovery, Plaintiff’s sanctions request is also DENIED. <i>Counsel for Plaintiff is to give notice of this ruling.</i>
5.	Sorto v. Mihalīs 23-1350662	<i>(Off calendar- matter transferred)</i>
6.	Ricks v. Wine Cellar Designers Group, LLC 22-1274692	The motions to compel responses to Special Interrogatories, Set One, and Request for Production of Documents, Set Two, from defendant Wine Cellar Designers Group, LLC (“Defendant”) filed by Plaintiff Tyler Ricks (“Plaintiff”) are DENIED.

		On 02/20/25, the Court granted Plaintiff's unopposed motion to strike the answer of Defendant and enter Defendant's default due to Defendant's failure to obtain counsel. (ROA 107.) Entry of a defendant's default cuts off its right to appear in the action. (See Weil & Brown, Cal. Prac. Guide, <i>Civ. Proc. Before Trial</i>, Ch.5-A ¶ 5:6, citing <i>Devlin v. Kearny Mesa AMC/Jeep/Renault, Inc.</i> (1984) 155 Cal.App.3d 381, 385-386.) As such, Defendant would be unable to participate in any discovery the Court may order pursuant to these motions. Furthermore, entry of default deprives the court of jurisdiction to consider any motion other than a motion for relief from default. (<i>Id.</i>, ¶ 5:7, citing <i>W.A. Rose Co. v. Mun.Ct. (FitzSimmons)</i> (1959) 176 Cal.App.2d 67, 72.) Based on the foregoing, the motions are DENIED. <i>Counsel for Plaintiff is ordered to give notice.</i>
7.	Farkas v. Smith 23-1324888	Before the Court at present are two motions, both filed by plaintiff/cross-defendant Joel Farkas ("Farkas"), seeking orders to compel further responses from defendant/cross-complainant Jennifer Blair Smith ("Smith") as follows: (1) Motion to Compel Compliance with Plaintiff's Requests for Production of Documents, filed on 11/19/24, seeking further responses to Farkas' Requests for Production ("RFPs") Sets One and Two – specifically, for RFP Nos. 6, 7, 14 - 19, 21, 26, 28, 29, 43-45, 47 -55, 60, 64-70, and 76 ("Motion 1" below); and (2) Motion to Compel Further Responses to Plaintiff's Requests for Production of Documents, Set Three and Special Interrogatories, Set Four, filed on 1/22/25, seeking further responses to Farkas' RFPs Set Three, for RFP Nos. 103-105 and 111-112, and on Farkas' Special Interrogatories ("SROGs"), Set Four, for SROGs 458-460 and 463 ("Motion 2" below). Motion 1 is GRANTED on the merits and GRANTED IN PART on the sanctions request. <u>Motion 1</u> demonstrates that RFPs Set One were served on 3/3/24; Smith responded on 4/12/24 and produced some documents thereafter. (ROA 299, Canzoneri Decl., ¶¶ 2-4, Ex. A.) RFPs Set Two were served on 6/20/24; Smith responded on 9/16/24 but provided no additional documents. (<i>Id.</i> at ¶¶ 5-7, Ex. B.) Meet and confer letters were sent, but Smith's counsel did not respond. (<i>Id.</i> at ¶¶ 8-9, Exs. C and D.) By this Motion, Farkas seeks further responses and a further production for any